

Present

Mr. Justice Sheikh Abdul Awal

Criminal Appeal No. 104 of 2015

Farjana Aktar

.....Convict-appellant.

-Versus-

The State and another

.....Respondent.

No one appears

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with,

Ms. Koheenoor Akter, A.A.G.

..... For the respondent No.1

Heard and Judgment on 14.01.2024.

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant, Farjana Aktar is directed against the impugned judgment and order of conviction and Sentence dated 10.02.2014 passed by the learned Sessions Judge, Narail in Session Case No. 137 of 2013 arising out of C.R. Case No. 293 of 2012 (N) convicting the accused appellant under section 138 of the Negotiable Instrument Act, 1881 and sentencing her thereunder to suffer imprisonment for a period of 01 (one) year and to pay a fine of Tk. 2,97,000/- (two Lac ninety seven thousand).

The gist of the case is that one, Md. Raju as complainant filed a petition of complaint being C.R. Case No. 293 of 2012 (N) in the Court of the learned Senior Judicial Magistrate, 1st Court, Narail against the convict-appellant under section 138 of the Negotiable Instrument Act, 1881 stating, inter-alia, that to pay his outstanding dues amounting to Tk. 2,97,000/-(two Lac ninety seven thousand) the convict-appellant on 04.04.2012 issued a cheque of Tk. 2,97,000/- of Sonali Bank Limited in favour of the complainant respondent No.2 and thereafter, the said cheque was dishonoured for insufficient of fund and thereafter, the complainant sent a legal notice through his Advocate to the accused appellant on 30.07.2012 asking him to pay the cheque's amount within 30 days but the accused-appellant did not pay any heed to it and hence, the case.

On receipt of the petition of complaint, the learned Additional Chief Judicial Magistrate, Narail examined the complainant under Section 200 of the Code of Criminal Procedure and after being satisfied took cognizance against the accused-appellant under section 138 of the Negotiable Instrument Act, 1881 and also issued summon against him fixing next date.

Thereafter, in usual course the case record was sent to the Court of the learned Sessions Judge, Narail for disposal,

wherein the case was registered as Sessions Case No. 137 of 2013 for disposal.

At the trial the complainant examined 3 witnesses and also exhibited some documents to prove his case while the defence examined none.

On conclusion of trial, the learned Sessions Judge, Narail by the impugned judgment and order dated 10.02.2014 convicted the accused appellant under Section 138 of the Negotiable Instrument Act, 1881 and sentenced her thereunder to suffer imprisonment for a for a period of 1 (one) year and to pay a fine of Tk. 2,97,000/-(two Lac and ninety seven thousand).

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 10.02.2014, the convict-appellant preferred this criminal appeal.

No one found present to press the appeal on repeated calls despite of fact that this criminal appeal has been appearing in the list for hearing with the name of the learned Advocate for the convict appellant since long.

In view of the fact that this is a petty old case arising out of Negotiable Instrument Act, 1881, I am inclined to dispose of it on merit on the basis of the evidence and materials on record.

On perusal of record, it is found that the complainant-respondent No. 2 after exhausting all the legal formalities

filed C.R. Case No. 293 of 2012 (N) under section 138 of the Negotiable Instrument Act against the convict appellant and during trial the complainant himself was examined as PW-1 and exhibited some documents to prove his case.

To constitute an offence under Section 138 of the NI Act, the following elements need to be fulfilled:

1. A cheque should have been issued by the payer for the discharge of a debt or other liability.

2. The cheque should have been presented or deposited by the payee within a period of six months from the date of drawing of the cheque or within the period of validity of the cheque, whichever is earlier.

3. The payee should have issued a notice in writing to the payer within 30 days of receipt of information regarding the return of the cheque as unpaid from the bank.

4. The payer/ drawer of the cheque should have paid the cheque amount within 30 days of receipt of the said notice from the payee.

5. If the payer is failed to pay in time the cheque amount, the payee should have filed a complaint within one month.

On an overall consideration of the facts, circumstances and the materials on record, it can be easily suggested that all the above quoted key elements are exist in the present case.

Besides, it appears from the record that a single bench of this Court at the time of admission of appeal by order dated 14.01.2015 granted bail to the convict-appellant for a period of 6 (six) months and thereafter, no one took any step to extend the order of bail as a result of which the said bail was expired long before on 14.07.2015. Therefore, in the attending facts and circumstances of the case, I find no difficulty whatever in holding that the convict-appellant is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15 BLC, where it has been observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

On an analyses of impugned judgment and order of conviction and sentence dated 10.02.2014 passed by the learned Sessions Judge, Narail in Session Case No. 137 of 2013, I find no flaw in the reasonings of the trial Court or any ground to assail the same inasmuch as all the key elements of Section 138 of Negotiable Instrument Act are exist in the case.

The learned Sessions Judge appears to have considered all the material aspects of the case and justly convicted the accused appellant under Section 138 of the Negotiable Instrument Act, 1881 and sentenced her thereunder to suffer simple imprisonment for a period of 06 (six) months and to

pay a fine of Tk. 2,97,000/-(two Lac and ninety seven thousand).

On the above, 2 (two) counts, this appeal must fail.

In the result the appeal is dismissed. The impugned judgment and order of conviction and Sentence dated 10.02.2014 passed by the learned Sessions Judge, Narail in Session Case No. 137 of 2013 arising out of C.R. Case No. 293 of 2012 (Narail) is hereby affirmed.

Since the appeal is dismissed the convict appellant, Farjana Aktar is directed to surrender her bail bond within 3 (three) months from today to suffer her sentence, failing which the Trial Court shall take necessary steps to secure arrest against her.

The complainant-respondent No.2 is permitted to withdraw half of the cheque's amount as deposited in the Trial Court by the convict-appellant for the purpose of preferring this Criminal Appeal.

Send down the lower Court records at once.